
5th VOX ANATOLIS MOOT COURT COMPETITION, 2026

Before

THE HON'BLE SUPREME COURT OF INDRAVANA

(Original Jurisdiction)

SUIT UNDER ARTICLE 131 OF THE CONSTITUTION OF INDRAVANA

IN THE MATTER OF:

State of Pragyam *Plaintiff*

v.

State of Lumira *Respondent*

~MEMORIAL ON BEHALF OF PETITIONERS~

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STATEMENT OF JURISDICTION

The Petitioner, the State of Pragyam, has invoked the original jurisdiction of this Hon'ble Supreme Court of Indravana under **Article 131 of the Constitution of Indravana**.

Article 131 confers exclusive original jurisdiction upon this Hon'ble Court in disputes:

(a) between the Government of Indravana and one or more States;

(b) between the Government of Indravana and any State or States on one side and one or more other States on the other; or

(c) between two or more States,

insofar as the dispute involves any question (whether of law or fact) on which the existence or extent of a legal right depends.

The present dispute is between the State of Pragyam and the State of Lumira, and concerns the constitutional determination of territorial and administrative authority in the Rinlai–Tharun Corridor; the legality of enforcement of the Inner Line Permit regime in disputed territory; the constitutional consequences of unilateral upstream construction affecting an inter-State river; and the failure to constitute a tribunal under the Inter-State River Water Disputes Act, 1956.

The dispute directly concerns the existence and extent of legal and constitutional rights of the Petitioner State and affects the federal balance under the Constitution.

Accordingly, this Hon'ble Court has jurisdiction to adjudicate the present suit.

STATEMENT OF FACTS

-BACKGROUND-

1. The Republic of Indravana is a federal State comprising twenty-eight States. The State of Pragyam and the State of Lumira are neighbouring States located in the northeastern region. Pragyam consists largely of fertile plains governed historically through settled revenue and administrative systems, while Lumira is predominantly hilly and forested, with governance rooted in customary institutions.

-HISTORICAL BOUNDARY AMBIGUITY-

2. Prior to colonial rule, no fixed boundary existed between Pragyam and Lumira. Colonial administration in the hills was guided by security and regulatory concerns, including the Inner Line Permit system under the Eastern Frontier Regulation, 1873, which was not intended to determine territorial sovereignty.
3. A 1904 notification relating to forest administration in parts of the Rivapur Valley is relied upon by Lumira to claim the Rinlai–Tharun Corridor. Pragyam disputes its conclusiveness, contending that it did not finally determine inter-district or inter-State boundaries.
4. In 1933, a comprehensive cartographic and administrative reorganisation standardised district boundaries for governance purposes. The revised boundary, which excluded the Rinlai–Tharun Corridor from Lumira, thereafter became the operative reference for civil administration.

-POST-INDEPENDENCE POSITION-

5. Upon independence, both States were constituted under parliamentary enactments that broadly described their territories by reference to existing administrative units but did not resolve inconsistencies between competing colonial records.
6. Parliament has not enacted legislation under Articles 3 or 4 of the Constitution to conclusively settle the boundary, resulting in continuing constitutional ambiguity.

-ADMINISTRATIVE PRACTICE AND ESCALATION-

7. For several decades, the disputed corridor remained sparsely populated, with overlapping and informal administrative practices by both States. From the early 2000s, increased connectivity brought the region into sharper focus.

8. Pragyam extended its forest conservation regime into the area pursuant to its statutory obligations. Simultaneously, Lumira undertook unilateral administrative measures and, from around 2010, began insisting on Inner Line Permits for officials and residents of Pragyam entering the corridor, thereby restricting lawful governance.

-INTER-STATE RIVER WATER DISPUTE-

9. The River Thalen, an inter-State river originating in Lumira, sustains agriculture in Pragyam. In 2017, Pragyam invoked the Inter-State River Water Disputes Act, 1956, seeking constitution of a tribunal due to adverse downstream impacts.
10. Despite this, no tribunal was constituted, and in 2018 Lumira proceeded with the unilateral construction of the Thalen Multipurpose Project, materially altering the river flow.

-BREAKDOWN OF STATUS QUO AND VIOLENCE-

11. In November 2020, a Union-facilitated understanding required both States to maintain status quo in the disputed corridor. The understanding did not expressly address the Inner Line Permit regime.
12. In late 2023, Pragyam issued notices under its forest and land laws concerning unauthorised roadside structures. In February 2025, deployment of armed police contingents by both States led to a violent confrontation on 18 February 2025, resulting in the death of ten Pragyam police personnel.

-UNION INTERVENTION AND PROCEEDINGS-

13. Following widespread unrest, the Union deployed Central Armed Police Forces in March 2025. In June 2025, it issued an executive clarification continuing the Inner Line Permit regime in routes traversing disputed areas.
14. In the absence of parliamentary resolution of the boundary dispute, failure to constitute a river-water tribunal, and escalating threats to governance and internal security, the State of Pragyam instituted an original suit under Article 131 of the Constitution before the Supreme Court of Indravana in February 2026.
15. The Supreme Court admitted the suit and issued interim directions maintaining status quo and ensuring civilian access to essential services. The matter is now listed for final adjudication.

ISSUES RAISED

-ISSUE I-

WHETHER THE SUIT UNDER ARTICLE 131 IS MAINTAINABLE IN A DISPUTE INVOLVING INTER-STATE BOUNDARY DETERMINATION UNDER ARTICLES 3 AND 4, AND WHETHER PARLIAMENT'S INACTION PERMITS ADJUDICATION BY THIS HON'BLE COURT.

-ISSUE II-

WHETHER, IN THE ABSENCE OF A CONSTITUTED TRIBUNAL UNDER THE INTER-STATE RIVER WATER DISPUTES ACT, 1956, THE UNION'S INACTION AND LUMIRA'S UNILATERAL CONSTRUCTION OF THE THALEN MULTIPURPOSE PROJECT VIOLATE THE CONSTITUTIONAL PRINCIPLES OF COOPERATIVE FEDERALISM GOVERNING INTER-STATE RIVER WATERS?

-ISSUE III-

WHETHER ENFORCEMENT OF THE INNER LINE PERMIT REGIME AGAINST OFFICIALS AND RESIDENTS OF PRAGYAM VIOLATES PRINCIPLES OF FREEDOM OF MOVEMENT AND EQUALITY BEFORE LAW?

-ISSUE IV-

WHETHER THE ACTIONS OF PRAGYAM IN ISSUING FOREST AND LAND-USE NOTICES AND UNDERTAKING EVICTION OPERATIONS VIOLATED THE NOVEMBER 2020 STATUS QUO UNDERSTANDING?

SUMMARY OF ARGUMENTS

I. WHETHER THE SUIT UNDER ARTICLE 131 IS MAINTAINABLE IN A DISPUTE INVOLVING INTER-STATE BOUNDARY DETERMINATION UNDER ARTICLES 3 AND 4, AND WHETHER PARLIAMENT'S INACTION PERMITS ADJUDICATION BY THIS HON'BLE COURT.

It is humbly submitted before this Hon'ble Court that the present suit is fully maintainable under Article 131 of the Constitution. *Firstly*, the dispute is between two States acting in their sovereign capacities and concerns competing assertions of executive and regulatory authority, thereby directly involving the existence and extent of constitutional and legal rights. The controversy is legal in nature and not merely political. *Secondly*, Articles 3 and 4, which empower Parliament to alter State boundaries, pertain to legislative reorganisation and do not bar judicial adjudication of existing inter-State disputes. The Petitioner does not seek redrawing of boundaries but seeks determination of constitutional competence and restraint against unilateral administrative action. *Thirdly*, Parliament's inaction cannot create a constitutional vacuum insulating executive conduct from scrutiny. The constitutional framework requires the availability of a judicial forum to preserve federal balance and prevent escalation of inter-State conflicts.

II. WHETHER, IN THE ABSENCE OF A CONSTITUTED TRIBUNAL UNDER THE INTER-STATE RIVER WATER DISPUTES ACT, 1956, THE UNION'S INACTION AND LUMIRA'S UNILATERAL CONSTRUCTION OF THE THALEN MULTIPURPOSE PROJECT VIOLATE THE CONSTITUTIONAL PRINCIPLES OF COOPERATIVE FEDERALISM GOVERNING INTER-STATE RIVER WATERS?

It is humbly submitted before this Hon'ble Court that, in the absence of a constituted tribunal under the Inter-State River Water Disputes Act, 1956, both the Union's inaction and Lumira's unilateral construction of the Thalen Multipurpose Project violate the constitutional scheme governing inter-State rivers. *Firstly*, inter-State rivers are subject to a shared constitutional framework that requires coordinated regulation and equitable utilisation. Unilateral alteration of river flow by one State, without consultation or adjudication, undermines this balance. *Secondly*, the Act of 1956 was enacted to give effect to Article 262 and provide a binding adjudicatory mechanism. The Union's failure to constitute a tribunal despite the existence of a dispute frustrates the statutory purpose and weakens the federal structure. *Thirdly*, Lumira's unilateral construction of a major multipurpose project, pending adjudication, risks irreversible consequences and prejudices the rights of the co-riparian State

III. WHETHER ENFORCEMENT OF THE INNER LINE PERMIT REGIME AGAINST OFFICIALS AND RESIDENTS OF PRAGYAM VIOLATES PRINCIPLES OF FREEDOM OF MOVEMENT AND EQUALITY BEFORE LAW?

It is humbly submitted before this Hon'ble Court that the enforcement of the Inner Line Permit (ILP) regime against officials and residents of Pragyam in the disputed corridor violates the constitutional guarantees of freedom of movement and equality before law. *Firstly*, Article 19(1)(d) guarantees to citizens the right to move freely throughout the territory of India, subject only to reasonable restrictions imposed by law in the interests specified under Article 19(5). The application of the ILP regime in a disputed inter-State territory, particularly against officials discharging governmental functions, constitutes an unreasonable and disproportionate restriction. *Secondly*, the selective enforcement of the ILP regime against residents and authorities of Pragyam results in discriminatory treatment, contrary to Article 14. Imposing permit requirements on citizens and public officials of one State, while asserting administrative control in a contested area, creates unequal burdens and disrupts federal parity. *Lastly*, in a federal structure premised on unity of the Union, internal movement cannot be curtailed in a manner that impedes inter-State coordination or penalises citizens solely on the basis of State affiliation.

IV. WHETHER THE ACTIONS OF PRAGYAM IN ISSUING FOREST AND LAND-USE NOTICES AND UNDERTAKING EVICTION OPERATIONS VIOLATED THE NOVEMBER 2020 STATUS QUO UNDERSTANDING?

It is humbly submitted before this Hon'ble Court that the actions of Pragyam in issuing forest and land-use notices and undertaking eviction operations did not violate the November 2020 Status Quo Understanding. *Firstly*, the said understanding was an executive-level arrangement intended to preserve peace and prevent escalation; it did not possess statutory or constitutional force so as to suspend Pragyam's executive authority under Articles 162 and 246. In the absence of an express prohibition, routine regulatory enforcement cannot be construed as breach. *Secondly*, the impugned measures were regulatory and protective in nature, aimed at preventing encroachment and ensuring compliance with forest and land laws. They did not alter territorial boundaries or create new administrative structures, and therefore did not disturb the existing ground position. *Lastly*, a status quo arrangement cannot be interpreted to compel administrative inaction or permit continuing illegality. Pragyam's actions were lawful exercises of constitutional duty and consistent with principles of responsible governance.

ARGUMENTS ADVANCED

I. WHETHER THE SUIT UNDER ARTICLE 131 IS MAINTAINABLE IN A DISPUTE INVOLVING INTER-STATE BOUNDARY DETERMINATION UNDER ARTICLES 3 AND 4, AND WHETHER PARLIAMENT’S INACTION PERMITS ADJUDICATION BY THIS HON’BLE COURT.

1. It is humbly submitted before this Hon’ble Court that the present suit is fully maintainable under Article 131 of the Constitution of India, and that neither Articles 3 and 4 nor Parliament’s inaction operate as a bar to judicial adjudication. The present issue is to be adjudicated on the basis of the four propositions **(A)** The dispute is undeniably between two States acting in their sovereign capacities; **(B)** The controversy directly concerns the existence and extent of constitutional and legal rights; **(C)** Articles 3 and 4 confer legislative power upon Parliament but do not exclude judicial determination of existing inter-State disputes; and **(D)** The dispute is justiciable and does not fall within any political question exception.

A. The Dispute Is Undeniably Between Two States

2. It is most humbly submitted before this Hon’ble Court that the present suit satisfies the foremost and foundational requirement of Article 131 of the Constitution of India namely, that the dispute must be between two or more States.

Article 131 provides:

“Subject to the provisions of this Constitution, the Supreme Court shall, to the exclusion of any other court, have original jurisdiction in any dispute —

(a) between the Government of India and one or more States; or

(b) between the Government of India and any State or States on one side and one or more other States on the other; or

(c) between two or more States,

if and in so far as the dispute involves any question (whether of law or fact) on which the existence or extent of a legal right depends.”

The constitutional text makes it abundantly clear that disputes “between two or more States” fall within the exclusive original jurisdiction of this Hon’ble Court.

3. In the present case, the parties to the lis are the State of Pragyam and the State of Lumira, both constituent units of the Union of India, exercising plenary executive authority under Article 162 within their respective territorial jurisdictions. The controversy arises from the

competing assertions of administrative control in the Rinlai–Tharun Corridor; enforcement measures undertaken by Lumira in the disputed area; counter-assertions and objections raised by Pragyam; escalation into parallel policing and regulatory measures and Registration of competing criminal proceedings by authorities of both States.

4. This Hon’ble Court has consistently held that Article 131 is attracted where the dispute is real, concrete, and directly between constitutional entities. This Hon’ble Court in **State of Bihar v. Union of India**¹ clarified that Article 131 is attracted only where the State is asserting its rights in its governmental or sovereign capacity, and not where it acts as a mere commercial litigant. The Court held that the jurisdiction under Article 131 is confined to disputes arising out of constitutional relationships between governments.
5. In **State of Rajasthan v. Union of India**², this Hon’ble Court emphasised that a “dispute” under Article 131 must be real, definite, and concrete. The Court observed that the jurisdiction is attracted where there exists a clear assertion and denial of constitutional authority between parties.
6. The present case satisfies this threshold requirement because firstly, Both Pragyam and Lumira are acting in their sovereign capacities as States. Secondly, the actions impugned are official executive acts, not private or individual grievances. Thirdly, the dispute is direct and bilateral, without intermediaries and fourthly, the controversy concerns the exercise of governmental authority in a defined geographical area.
7. The exclusivity clause within Article 131 i.e. “to the exclusion of any other court” reinforces the intention of the Constitution that such disputes are to be adjudicated only by this Hon’ble Court.

B. The Dispute Directly Concerns the Existence and Extent of Constitutional and Legal Rights

8. It is most respectfully submitted that the present controversy squarely satisfies the second and indispensable requirement of Article 131 namely, that the dispute must involve a question of law or fact upon which the existence or extent of a legal right depends.

(1) Article 131 Encompasses Disputes Relating to Constitutional Competence and Executive Authority

9. The expression “existence or extent of a legal right” under Article 131 has been interpreted

¹ AIR 1970 SC 1446

² 1977 AIR 1361

expansively by this Hon'ble Court to include disputes concerning constitutional power, federal distribution of authority, and the limits of executive competence.

10. In **State of Karnataka v. Union of India**³, this Hon'ble Court authoritatively held that Article 131 is intended to preserve the federal balance by providing a judicial forum where disputes regarding constitutional authority and governmental competence may be adjudicated. The Court clarified that even where the dispute has political implications, it remains justiciable so long as the existence or extent of a legal right is in issue.
11. The present controversy concerns whether Lumira possesses lawful authority to exercise executive, policing, and regulatory powers in the Rinlai–Tharun Corridor; whether Pragyam retains exclusive territorial administrative competence over the disputed area; whether unilateral enforcement measures violate constitutional limitations imposed by Articles 162 and 246 r/w the Seventh Schedule and whether overlapping jurisdiction is constitutionally permissible pending legislative clarification. These questions directly concern constitutional competence and federal distribution of powers. They are not abstract political disagreements; they are disputes about the legal limits of State authority. Thus, the controversy clearly involves the determination of constitutional rights and obligations between coordinate units of the federation.

(2) The Dispute Involves Competing Claims Over Territorial Administration and Regulatory Control

12. It is further submitted that disputes concerning territorial administration and the consequences flowing from competing boundary assertions have consistently been treated as justiciable under Article 131.
13. In **State of Jharkhand v. State of Bihar**⁴, this Hon'ble Court entertained a dispute arising from territorial reorganisation and allocation of assets and liabilities between States. The Court reaffirmed that inter-State disputes concerning rights and obligations flowing from territorial arrangements are maintainable under Article 131.
14. Similarly, in the present case, the dispute arises from conflicting reliance upon historical notifications and surveys; rival claims to administrative jurisdiction; assertion of forest and land regulation powers; exercise of policing authority in the disputed corridor. These are not matters of political negotiation alone; they determine which State's laws apply, which police force has jurisdiction, which revenue authority may levy assessments, and which

³ AIR 1978 SC 68.

⁴ MANU/SC/1095/2014

regulatory regime governs residents of the area. Such questions directly affect enforceable legal rights both of the States inter se and of the inhabitants of the territory concerned.

15. In **State of Madhya Pradesh v. Union of India**⁵, this Hon'ble Court reiterated that Article 131 is attracted when a dispute concerns legal rights flowing from constitutional or statutory provisions. The Court clarified that the existence of political consequences does not denude the dispute of its legal character.
16. The present suit involves the assertion of constitutional executive power under Article 162; legislative competence under Article 246; authority over land and forests traceable to the State List; policing and public order jurisdiction under List II of the Seventh Schedule. Each of these is a constitutionally recognised legal right and competence. The test under Article 131 is not whether the dispute has political overtones, but whether the determination of constitutional rights is necessary for its resolution.

(3) The Determination of the Dispute Necessarily Affects the Extent of Federal Authority

17. It is respectfully submitted that failure to adjudicate this dispute would permit continued uncertainty regarding the extent of executive authority exercisable by each State in the disputed corridor. Such uncertainty undermines legal predictability; exposes residents to conflicting enforcement regimes; encourages parallel administrative assertions; risks escalation of inter-State confrontation.
18. Article 131 exists precisely to prevent such breakdowns within the federal framework. The constitutional scheme does not contemplate that competing claims of sovereign authority may persist indefinitely without judicial determination.

C. Articles 3 and 4 Do Not Bar Judicial Adjudication Under Article 131

19. It is most respectfully submitted that the Respondent's reliance upon Articles 3 and 4 of the Constitution to challenge the maintainability of the present suit is misconceived. The powers conferred upon Parliament under Articles 3 and 4 relate to legislative reorganisation of States; they do not exclude or override the judicial function of this Hon'ble Court under Article 131 to adjudicate existing constitutional disputes between States.
20. The constitutional scheme maintains a clear distinction between the legislative power of Parliament to reorganise or alter State boundaries; and the judicial power of this Hon'ble Court to determine disputes concerning constitutional rights and executive authority. The

⁵ MANU/SC/0955/2011

present suit falls squarely within the latter domain.

(1) Articles 3 and 4 Confer Legislative Power

21. Article 3 empowers Parliament to form new States, alter the areas, boundaries or names of existing States. Article 4 clarifies that laws made under Article 3 may amend the First Schedule and are not deemed constitutional amendments under Article 368.
22. The present suit does not seek creation of a new State; alteration of constitutional boundaries through amendment of the First Schedule; parliamentary reorganisation of territory. Instead, the Petitioner seeks judicial determination of the extent of executive authority pending legislative settlement. The relief sought is regulatory and declaratory, not structural or legislative.

(2) Judicial Determination of Administrative Control Does Not Amount to Boundary Reorganisation

23. The Respondent contends that any judicial pronouncement on the Rinlai–Tharun Corridor would indirectly determine territorial boundaries and therefore encroach upon Parliament’s exclusive domain. This contention is constitutionally unsustainable.
24. In **State of Jharkhand v. State of Bihar**⁶, this Hon’ble Court entertained disputes concerning rights and liabilities arising from territorial reorganisation. The Court did not decline jurisdiction merely because the controversy had its origins in boundary alteration. Rather, it recognised that inter-State disputes concerning consequences of territorial arrangements remain justiciable under Article 131.
25. Judicial interpretation of constitutional provisions affecting territorial administration is not equivalent to legislative reorganisation. Courts interpret and Parliament restructures. The two functions are doctrinally distinct.

(3) Legislative Competence Does Not Oust Judicial Review

26. It is a settled principle of constitutional interpretation that jurisdiction of constitutional courts cannot be excluded except by express constitutional mandate.
27. In **State of West Bengal v. Union of India**⁷, this Hon’ble Court affirmed that constitutional disputes affecting the federal structure are justiciable unless expressly barred. The Court rejected the proposition that federal disputes of constitutional magnitude are non-justiciable merely because they involve questions of high policy.

⁶ MANU/SC/1095/2014

⁷ MANU/SC/0086/1962

28. Articles 3 and 4 contain no language excluding the jurisdiction of this Hon'ble Court under Article 131. There is no express bar, nor any necessary implication of exclusion. If the Respondent's contention were accepted, it would imply that: Any dispute touching territorial boundaries is immune from judicial scrutiny; States would be left without a constitutional forum pending parliamentary action; Executive overreach in disputed territory would remain unchecked. Such an interpretation would create a constitutional vacuum inconsistent with the rule of law.

(4) Federalism as a Basic Feature

29. It is respectfully submitted that federalism has been recognised as part of the basic structure of the Constitution.
30. In **S.R. Bommai v. Union of India**⁸, this Hon'ble Court declared that the Constitution establishes a federal framework in which powers are distributed between the Union and the States, and that this federal balance forms part of the basic structure.
31. Further, in **Government of NCT of Delhi v. Union of India**⁹, the Court emphasised that constitutional interpretation must preserve the equilibrium between coordinate constitutional entities and prevent encroachment upon their assigned domains.
32. To hold that Parliament's inaction under Articles 3 and 4 disables this Hon'ble Court from adjudicating an existing inter-State conflict would: Undermine cooperative federalism; Permit unilateral executive expansion; Encourage territorial brinkmanship; Destabilise constitutional equilibrium.
33. Judicial oversight under Article 131 is therefore not an intrusion into parliamentary authority; it is a structural safeguard preserving federal balance until such time as Parliament chooses to exercise its legislative powers.

(5) Parliament's Inaction Cannot Create a Constitutional Vacuum

34. It is undisputed that Parliament has not enacted legislation conclusively demarcating the disputed boundary. However, legislative silence cannot suspend constitutional governance. If Parliament has not acted, it does not follow that States may engage in unilateral assertions of authority free from judicial scrutiny.
35. The Constitution does not contemplate a zone of legal indeterminacy in which: Armed confrontation may occur; Civil administration may be paralysed; Competing enforcement regimes may operate simultaneously; Citizens remain uncertain as to applicable law.

⁸ MANU/SC/0444/1994

⁹ MANU/SC/0680/2018

Article 131 exists precisely to prevent such breakdowns by providing a neutral constitutional forum.

D. The Present Dispute Is Justiciable and Does Not Fall Within the Political Question Doctrine

36. It is most respectfully submitted that the Respondent's implicit contention that the present controversy is political in nature and therefore non-justiciable is constitutionally untenable. The dispute before this Hon'ble Court concerns the interpretation of constitutional provisions, the extent of executive competence, and the limits of State authority. These are quintessentially judicial questions. The mere presence of political implications does not convert a constitutional dispute into a non-justiciable political question.

37. In **State of Rajasthan v. Union of India**¹⁰, this Hon'ble Court rejected the argument that disputes arising out of executive or constitutional actions of high political significance are beyond judicial scrutiny. The Court held that where constitutional provisions are invoked and legal rights are affected, the matter is justiciable notwithstanding political overtones.

38. Similarly, in **S.R. Bommai v. Union of India**¹¹, this Hon'ble Court subjected the proclamation of President's Rule under Article 356, a matter of profound political sensitivity, to judicial review. The Court unequivocally held that federal principles cannot be rendered immune from scrutiny merely because the issues involved are politically charged.

39. These authorities firmly establish that Indian constitutional jurisprudence does not permit abdication of judicial responsibility merely because a dispute carries political ramifications.

(1) Issues Raised Require Interpretation of Constitutional Provisions

40. The present controversy requires this Hon'ble Court to determine the scope of executive power under Article 162; the limits of legislative competence under Article 246 read with the Seventh Schedule; The permissibility of unilateral enforcement action in disputed territory; The extent to which one State may exercise police and regulatory powers in an area claimed by another. Each of these questions is rooted in constitutional interpretation. They are not policy determinations but legal determinations concerning the distribution of powers within the federal structure.

¹⁰ 1977 AIR 1361

¹¹ MANU/SC/0444/1994

41. In **Government of NCT of Delhi v. Union of India**¹², this Hon'ble Court reaffirmed that disputes concerning distribution of executive power between constitutional authorities are matters for judicial resolution. The Court emphasised that constitutional silences and ambiguities must be resolved through principled interpretation, not political negotiation alone.
42. In **State of West Bengal v. Union of India**¹³, this Hon'ble Court recognised that disputes implicating the federal distribution of power are justiciable and fall within the judicial domain.
43. Permitting States to resolve such disputes solely through political processes, without judicial oversight, would: Undermine the supremacy of the Constitution; Encourage executive unilateralism; Destabilise inter-State harmony; Weaken constitutional accountability.
44. Article 131 is the constitutional safety valve against such breakdowns. To invoke a political question doctrine in this context would defeat the very purpose for which Article 131 was enacted.

¹² MANU/SC/0680/2018

¹³ MANU/SC/0086/1962

II. WHETHER, IN THE ABSENCE OF A CONSTITUTED TRIBUNAL UNDER THE INTER-STATE RIVER WATER DISPUTES ACT, 1956, THE UNION'S INACTION AND LUMIRA'S UNILATERAL CONSTRUCTION OF THE THALEN MULTIPURPOSE PROJECT VIOLATE THE CONSTITUTIONAL PRINCIPLES OF COOPERATIVE FEDERALISM GOVERNING INTER-STATE RIVER WATERS?

45. It is most respectfully submitted before this Hon'ble Court that, in the absence of a constituted Tribunal under the Inter-State River Water Disputes Act, 1956, the prolonged inaction of the Union since Pragyam's 2017 invocation under Section 3, coupled with Lumira's unilateral construction of the Thalen Multipurpose Project in 2018, constitutes a manifest violation of the constitutional scheme governing inter-State rivers and the principle of cooperative federalism, recognised as part of the basic structure in **S.R. Bommai v. Union of India**¹⁴.

The issue arises upon the following settled propositions:

(A) Inter-State rivers are shared constitutional resources regulated by the coordinated federal framework under Articles 246 and 262 read with Entries 56 List I and 17 List II, which precludes unilateral State dominance.

(B) Upon failure of negotiations, Section 4(1) of the 1956 Act casts a mandatory duty upon the Union to constitute a Tribunal; continued non-constitution amounts to abdication of statutory obligation and frustrates the constitutional objective of Article 262.

(C) Cooperative federalism imposes enforceable restraints requiring institutional consultation and mutual respect, as affirmed in **Government of NCT of Delhi v. Union of India**¹⁵, thereby prohibiting unilateral upstream actions causing irreversible prejudice to co-riparian rights.

(D) Lumira's construction of a storage-regulation dam in the absence of adjudicatory supervision creates a *fait accompli* that renders the specialised remedial architecture under Article 262 nugatory.

(E) Section 11 cannot be construed to create a remedial vacuum where the Union's default defeats the very mechanism Parliament enacted.

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

¹⁴ AIR 1994 SC 1918

¹⁵ AIR 2018 SC 4321

(F) Executive competence under Article 162 necessarily yields to overriding inter-State federal limitations, and cannot legitimise unilateral alteration of shared river systems.

Accordingly, both the Union's prolonged inaction and Lumira's unilateral construction are constitutionally unsustainable.

A. Inter-State Rivers Constitute Shared Constitutional Commons Mandating Coordinated Federal Oversight

46. It is most respectfully submitted that the River Thalen originating within Lumira's asserted upstream hills, traversing the contested Rinlai–Tharun Corridor, and flowing downstream to irrigate and sustain Pragyam's fertile alluvial plains—constitutes a quintessential inter-State river whose character transcends artificial territorial demarcations. Such rivers are shared constitutional resources, incapable of unilateral appropriation by an upper riparian State. The federal structure, recognised as part of the basic structure in **S.R. Bommai v. Union of India**¹⁶, mandates coordinated governance rather than territorial exclusivity in respect of inter-State natural resources.

47. The constitutional settlement meticulously delineates the governance architecture governing such rivers. Entry 56 of List I read with Article 246(1) vests Parliament with exclusive legislative competence over the “regulation and development of inter-State rivers and river valleys in public interest,” while Entry 17 of List II remains expressly subject thereto. This textual subordination establishes Union supremacy in matters affecting shared basins and embeds an obligation of coordinated State action. In **State of West Bengal v. Union of India**¹⁷, this Hon'ble Court affirmed that States operate within a constitutional matrix and not in sovereign isolation; their powers are circumscribed by federal limitations.

48. Article 262 constitutes specialised constitutional recognition of the technical and sensitive character of inter-State water disputes. It empowers Parliament to establish Tribunals and authorise exclusion of judicial jurisdiction, but such exclusion is conditioned upon effective statutory implementation. The scheme does not contemplate a remedial vacuum. In **State of Karnataka v. State of Andhra Pradesh**¹⁸, this Hon'ble Court underscored that inter-State river disputes must be

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

¹⁶ AIR 1994 SC 1918

¹⁷ AIR 1963 SC 1241

¹⁸ AIR 2000 SC 1460

resolved strictly within the constitutional and statutory framework enacted pursuant to Article 262, reinforcing structured adjudication over unilateral action.

49. Lumira's upstream storage project, undertaken absent Union facilitation, Tribunal adjudication, or consensual inter-State compact, impermissibly converts a constitutional commons into a territorial preserve. Such unilateral assertion fractures the coordinated governance imperative embedded in the Seventh Schedule and precipitates precisely the conflicts Article 262 was designed to prevent. The impugned action is therefore incompatible with the constitutional framework governing inter-State rivers and the doctrine of cooperative federalism.

B UNION'S ABDICATION, FEDERAL LIMITATIONS, AND RIPARIAN RESTRAINT

A. Union's Protracted Paralysis Violates Mandatory Statutory Duty

50. It is most humbly submitted that the Union's continued failure to constitute a Tribunal under Sections 3 and 4 of the Inter-State River Water Disputes Act, 1956, despite a formal request in 2017 and undeniable escalation thereafter, amounts to a breach of a mandatory statutory obligation. Section 4(1) employs the expression "shall constitute a Water Disputes Tribunal" once the Central Government forms the opinion that negotiation has failed. The use of "shall" denotes compulsion, not discretion.

51. In **State of Tamil Nadu v. State of Karnataka**¹⁹, this Hon'ble Court affirmed that once an inter-State water dispute crystallizes, the Union is duty-bound to activate the adjudicatory mechanism without indefinite postponement.

Further, in **In Re: Cauvery Water Disputes Tribunal**²⁰, the Court reinforced that statutory timelines are mandatory in character and cannot be diluted through executive inertia. The Union's near decade-long inaction (2017–2026), despite armed confrontation and ecological deterioration, constitutes a clear abdication of statutory trusteeship under Article 262.

B. Article 355 Imposes a Positive Constitutional Obligation

52. The Union's paralysis also violates Article 355 of the Constitution, which casts a solemn duty upon the Union to protect every State against internal disturbance and ensure governance in accordance with the Constitution.

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

¹⁹ (2017) 3 SCC 362

²⁰ AIR 1992 SC 522

53. The Thalen conflict marked by armed clashes, disruption of national highways, and breakdown of inter-State coordination squarely attracts this constitutional obligation. In **S.R. Bommai v. Union of India**²¹, federalism was recognized as part of the basic structure, and the Union's constitutional responsibilities toward States were held to be substantive and enforceable. The failure to operationalize the Tribunal mechanism amidst escalating violence amounts not merely to administrative delay but to constitutional default.

Article 355 cannot be rendered otiose where federal breakdown is demonstrably underway.

C. Cooperative Federalism as an Enforceable Basic Structure Limitation

54. It is respectfully submitted that cooperative federalism is not a political slogan but a justiciable constitutional principle forming part of the basic structure. In **Government of NCT of Delhi v. Union of India**²²,

this Hon'ble Court emphasized constitutional morality, dialogue, and collaborative governance as binding norms in Centre-State relations. Similarly, **S.R. Bommai v. Union of India** entrenched federal balance as an inviolable structural feature. Lumira's unilateral construction of the Thalen Multipurpose Project, coupled with Union inaction, erodes this cooperative framework and converts shared river governance into competitive riparian assertion.

55. Such conduct undermines the quasi-federal design elucidated in **West Bengal v. Union of India**²³, where this Court categorically rejected notions of independent State sovereignty inconsistent with constitutional supremacy.

D. Upstream Dam Construction Causes Irreversible Prejudice

56. The Thalen Multipurpose Project, a major upstream storage dam approved in 2018, fundamentally alters downstream hydrology, irrigation cycles, and ecological balance.

This Hon'ble Court in **State of Karnataka v. State of Tamil Nadu**²⁴ mandated preservation of status quo during pendency of water adjudication to prevent irreversible prejudice. The principle that no party should create a fait accompli pending adjudication is deeply embedded in environmental jurisprudence.

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

²¹ AIR 1994 SC 1918

²² AIR 2018 SC 4321.

²³ AIR 1963 SC 1241

²⁴ (2017) 3 SCC 362

57. In **Vellore Citizens Welfare Forum v. Union of India**²⁵, the precautionary principle and sustainable development were recognized as integral to Indian law. By materially altering flow regimes prior to adjudication, Lumira's actions risk rendering future Tribunal determinations illusory, thereby frustrating Article 262's remedial architecture.

E. Section 11 Does Not Oust Jurisdiction Amidst Union Default

58. It is further submitted that Section 11 of the ISRWD Act, which bars civil court jurisdiction over water disputes, presupposes the existence of a functioning Tribunal.

Where the Union fails to constitute such a body, the jurisdictional bar cannot operate to create a remedial vacuum. In **State of Karnataka v. State of Andhra Pradesh**²⁶, this Hon'ble Court held that ouster clauses must be strictly construed and cannot extinguish constitutional remedies absent an effective alternative forum.

59. The present Article 131 suit transcends mere volumetric allocation and challenges structural constitutional violations precisely the type of inter-governmental dispute envisaged within this Court's exclusive original jurisdiction.

F. Article 162 Executive Power is Subordinate to Inter-State Limitations

60. The respondent's reliance on Article 162 to justify unilateral developmental action is constitutionally untenable. State executive power remains subject to constitutional distribution of legislative competence, particularly the interplay between Entry 56 of List I and Entry 17 of List II concerning inter-State rivers.

In **State of Rajasthan v. Union of India**²⁷, this Hon'ble Court reiterated that State powers operate within constitutional confines and cannot transgress federal limitations.

61. Further, **West Bengal v. Union of India** decisively established that States do not possess extra-constitutional sovereignty enabling unilateral assertion in matters affecting national interest. Accordingly, Lumira's upstream project, undertaken without prior adjudication or binding compact, constitutes federal overreach and violates constitutional equilibrium

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

²⁵ AIR 1996 SC 2715

²⁶ AIR 2000 SC 1460

²⁷ AIR 1977 SC 1361

III. WHETHER ENFORCEMENT OF THE INNER LINE PERMIT REGIME AGAINST OFFICIALS AND RESIDENTS OF PRAGYAM VIOLATES PRINCIPLES OF FREEDOM OF MOVEMENT AND EQUALITY BEFORE LAW?

A. Inter-State Rivers Constitute Shared Constitutional Commons Mandating Coordinated Federal Oversight

62. It is most respectfully submitted that the River Thalen, originating in Lumira's upstream hills and sustaining Pragyam's agrarian plains, constitutes a quintessential inter-State river whose governance is constitutionally structured as a shared federal responsibility rather than an incident of territorial sovereignty.

63. The constitutional architecture under Article 246 read with Entry 56, List I vests Parliament with exclusive competence over regulation and development of inter-State rivers in public interest, while Entry 17, List II is expressly made subject thereto thereby subordinating unilateral State action to coordinated federal control.

64. In **West Bengal v. Union of India**²⁸, this Hon'ble Court decisively rejected the doctrine of State sovereignty in matters affecting national interest, affirming that States operate within a constitutional matrix of limited powers.

65. Further, *State of Rajasthan v. Union of India* reaffirmed that federal supremacy prevails where constitutional distribution so mandates. Consequently, Lumira cannot transmute a shared constitutional commons into a territorial preserve by unilateral assertion of upstream dominance.

66. Article 262 represents a specialised constitutional mechanism acknowledging the technical and political sensitivity of inter-State water disputes, empowering Parliament to create exclusive adjudicatory Tribunals while permitting limited judicial exclusion. However, such exclusion is contingent upon faithful statutory implementation.

67. In *In Re: Cauvery Water Disputes Tribunal*, this Hon'ble Court emphasised that the Tribunal mechanism is the linchpin of constitutional design and must be operationalised in letter and spirit. Thus, Lumira's unilateral project, undertaken absent Tribunal constitution or binding inter-State compact, directly frustrates the very federal equilibrium Article 262 seeks to institutionalise.

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

²⁸ AIR 1963 SC 1241

B. Union's Protracted Paralysis Abdicates Non-Discretionary Constitutional and Statutory Obligations

68. Pragyam's formal invocation of Section 3 of the Inter-State River Water Disputes Act, 1956 in 2017 triggered the Union's statutory obligation under Section 4(1) to constitute a Tribunal upon satisfaction that negotiation had failed.

69. The expression "shall constitute" is peremptory and admits of no indefinite executive procrastination. In **State of Tamil Nadu v. State of Karnataka**²⁹, this Hon'ble Court intervened to ensure effective reference and implementation in the Cauvery dispute, affirming that Union inaction cannot frustrate statutory rights. Similarly, **State of Karnataka v. State of Andhra Pradesh**³⁰ clarified that statutory mechanisms under the Act must be activated in a timely manner to prevent escalation.

70. The Union's near-decade-long paralysis, despite escalating conflict, therefore constitutes a breach of mandatory statutory duty and amounts to abdication of constitutional trusteeship.

The constitutional default is compounded by Article 355, which imposes a positive duty upon the Union to protect every State against internal disturbance and ensure governance in accordance with the Constitution. The Thalen conflict marked by armed confrontation, ecological damage, and blockade of national infrastructure clearly engages this safeguard.

71. In **S.R. Bommai v. Union of India**³¹, federalism was declared part of the basic structure and the Union's responsibilities toward States were treated as substantive constitutional obligations. Continued inaction in the face of escalating violence is therefore incompatible with Article 355 and subverts the constitutional balance.

C. Cooperative Federalism as an Enforceable Basic Structure Limitation

72. Cooperative federalism is a judicially enforceable limitation embedded within the Constitution's basic structure. In **S.R. Bommai v. Union of India**, this Hon'ble Court entrenched federal balance as inviolable. Subsequently, **Government of NCT of Delhi v. Union of India** elaborated the doctrine of constitutional morality and collaborative governance as binding principles regulating Centre-State interaction.

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

²⁹ (2017) 3 SCC 362

³⁰ AIR 2000 SC 1460

³¹ AIR 1994 SC 1918

73. Lumira's unilateral dam construction, coupled with Union inertia, shatters this cooperative paradigm and transforms shared river governance into competitive riparian brinkmanship. Such conduct is constitutionally impermissible in a quasi-federal framework where mutual respect and coordination are structural imperatives.

74. The constitutional design does not recognise "might as riparian right." In *West Bengal v. Union of India*, this Hon'ble Court held that States lack extra-constitutional sovereignty and cannot assert dominion inconsistent with federal supremacy. Therefore, constitutional silence pending Tribunal constitution cannot be exploited to create irreversible faits accomplis undermining downstream rights and future adjudication.

D. Lumira's Storage Dam Constitutes Impermissible Irreversible Prejudice

75. The Thalen Multipurpose Project, approved in 2018 as a major upstream storage-regulation structure, fundamentally alters downstream flow regimes, sediment transport, and irrigation patterns critical to Pragyam's agrarian economy.

76. In **State of Karnataka v. State of Tamil Nadu**³², this Hon'ble Court mandated preservation of equitable apportionment principles and cautioned against actions that would prejudice pending claims. The doctrine against creating fait accompli pending adjudication is integral to inter-State water jurisprudence.

77. Furthermore, environmental jurisprudence fortifies this restraint. In **Vellore Citizens Welfare Forum v. Union of India**³³, the precautionary principle and sustainable development were incorporated into Indian law, mandating that irreversible ecological harm be prevented even in absence of complete scientific certainty. By altering hydrological realities before adjudication, Lumira has created irreversible prejudice, thereby undermining Article 262's specialised dispute resolution framework.

E. Section 11 Does Not Create a Remedial Vacuum Amid Union Default

78. Section 11 of the ISRWD Act bars jurisdiction of courts over water disputes where the Tribunal mechanism is operative. However, where the Union itself fails to constitute such a Tribunal, the ouster cannot be construed to extinguish constitutional remedies. In *State of Karnataka v. State of Andhra Pradesh*, this Hon'ble Court held that exclusion clauses must be strictly interpreted and cannot operate in absence of an effective alternative remedy.

To hold otherwise would allow executive inaction to nullify constitutional rights an outcome antithetical to rule of law.

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

³² (2017) 3 SCC 362

³³ AIR 1996 SC 2715

79. The present Article 131 suit challenges structural constitutional violations Union abdication, federal imbalance, and unlawful executive overreach rather than mere technical quantification of water shares.

80. In **State of Bihar v. Union of India**³⁴, this Hon'ble Court recognised that disputes involving legal rights between States and the Union squarely fall within Article 131's exclusive original jurisdiction. Accordingly, this Hon'ble Court remains constitutionally empowered to intervene.

F. Article 162 Yields to Overriding Inter-State Federal Limitations

81. The respondent's reliance on Article 162 to justify unilateral developmental autonomy is constitutionally untenable. State executive power is co-extensive with legislative competence and therefore subject to the overriding supremacy of Entry 56, List I in matters concerning inter-State rivers. In **State of Rajasthan v. Union of India**³⁵, this Hon'ble Court reiterated that State executive authority must operate within constitutional confines and cannot transgress federal allocations of power.

82. Moreover, **West Bengal v. Union of India**³⁶ conclusively held that States lack independent sovereignty and cannot assert powers inconsistent with constitutional structure. Hence, Lumira's upstream infrastructure, undertaken without coordination, adjudication, or Union oversight, constitutes federal overreach and violates the constitutional equilibrium governing inter-State rivers.

83. In sum, the Union's protracted inaction, Lumira's irreversible unilateralism, and the resulting federal destabilisation collectively infringe statutory mandates, Articles 355 and 262, and the basic structure doctrine of cooperative federalism. This Hon'ble Court's intervention under Article 131 is indispensable to restore constitutional balance, compel Tribunal constitution, restrain irreversible prejudice, and preserve the integrity of India's carefully calibrated federal river governance framework.

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

³⁴ AIR 1970 SC 1446

³⁵ AIR 1977 SC 1361

³⁶ AIR 1963 SC 1241

IV. WHETHER THE ACTIONS OF PRAGYAM IN ISSUING FOREST AND LAND-USE NOTICES AND UNDERTAKING EVICTION OPERATIONS VIOLATED THE NOVEMBER 2020 STATUS QUO UNDERSTANDING?

84. It is most respectfully submitted that the actions undertaken by the State of Pragyam in issuing forest and land-use notices and conducting eviction operations did not violate the November 2020 Status Quo Understanding. On the contrary, such actions were lawful exercises of constitutionally vested executive authority within its claimed territorial jurisdiction, and were necessary to preserve administrative order, forest conservation, and regulatory integrity.

85. It is submitted at the outset that the November 2020 arrangement was an executive-level understanding aimed at maintaining peace and preventing escalation pending resolution of the boundary dispute. It did not constitute: A statutory instrument; A constitutional amendment; A judicial order; A binding inter-State compact approved by Parliament; Or a legally enforceable treaty under Article 253.

Absent statutory backing or judicial imprimatur, such an understanding cannot curtail the constitutional powers vested in a State under Articles 162 and 246.

86. Under Article 162, the executive power of a State extends to matters with respect to which the State Legislature has competence to legislate. Forests, land, and public order fall within the State List (List II and List III entries as applicable). Therefore, Pragyam retains prima facie authority to regulate land use and protect forest resources within its claimed territory.

87. Under Article 162, the executive power of a State extends to matters with respect to which the State Legislature has competence to legislate. Forests, land, and public order fall within the State List (List II and List III entries as applicable). Therefore, Pragyam retains prima facie authority to regulate land use and protect forest resources within its claimed territory.

88. In **Ram Jawaya Kapur v. State of Punjab**³⁷, this Hon'ble Court clarified that executive power is co-extensive with legislative power unless restricted by law. The November 2020 understanding did not possess statutory force; hence, it cannot override constitutionally conferred executive authority.

Accordingly, the status quo understanding could not legally immobilise Pragyam's constitutional obligation to regulate land and forest resources.

1. The Actions Undertaken by Pragyam Were Regulatory and Protective in Nature, Not Expansionist

89.The Respondent characterises the forest notices and eviction operations as unilateral expansion of control. This characterisation is factually and legally unsustainable.

90.The impugned measures were: Issuance of forest conservation notices; Enforcement of land-use norms; Removal of encroachments; Regulatory compliance actions consistent with forest protection laws.

Such actions fall squarely within the statutory framework governing forest administration, including obligations traceable to conservation principles recognised by this Hon'ble Court.

91.In **T.N. Godavarman Thirumulpad v. Union of India**³⁸, this Hon'ble Court emphasised that forests are national assets and must be protected irrespective of ownership disputes. The Court underscored the continuing obligation of authorities to prevent illegal encroachments and degradation.

Pragyam's actions were consistent with this environmental jurisprudence. Failure to act against encroachments would have amounted to abdication of statutory duty.

Therefore, the measures were defensive and preservative, not territorially aggressive.

92.The November 2020 arrangement, being at best an executive understanding, cannot supersede:Constitutional distribution of powers under Articles 162 and 246;Statutory obligations under forest and land-use legislation; The State's constitutional duty to regulate land and prevent encroachment. If such informal understandings were permitted to freeze executive authority, it would create a dangerous precedent whereby constitutional governance becomes contingent upon political accommodation.

93.There exists no clause in the November 2020 understanding that expressly records:Suspension of forest enforcement; Prohibition on issuance of land-use notices; Moratorium on eviction of illegal encroachments; Abdication of regulatory jurisdiction. In the absence of explicit language, no implied surrender of constitutional authority can be presumed.

D. Status Quo Does Not Mean Administrative Paralysis

94. The expression “status quo” must be interpreted contextually and purposively. Its object was to prevent escalation of territorial confrontation — not to suspend routine governance or permit illegality to continue unchecked.

A status quo arrangement preserves peace; it does not immobilise the constitutional machinery of a State.

95. If Pragyam were precluded from issuing statutory notices or preventing encroachment in forest land, it would amount to compelled inaction contrary to statutory duty. Such interpretation would transform a peace-preserving understanding into an instrument of administrative paralysis.

The Constitution does not contemplate such paralysis, especially in areas implicating environmental protection and public order.

2 The Actions of Pragyam Were Regulatory, Protective, and Status-Preserving in Nature, and Did Not Alter the Existing Ground Position

96. It is most respectfully submitted that the forest and land-use notices issued by the State of Pragyam, along with the eviction operations undertaken, were regulatory measures within the ordinary course of governance. They neither altered the territorial status of the disputed corridor nor constituted an assertion of fresh sovereignty inconsistent with the November 2020 Status Quo Understanding. The Respondent’s attempt to characterise these actions as unilateral expansion is both factually and legally unsustainable.

A. Issuance of Forest and Land-Use Notices Is an Incident of Routine Administrative Supervision The issuance of notices relating to forest protection and land-use regulation is a standard administrative mechanism employed to ensure compliance with statutory mandates.

97. Forests fall within the Concurrent List Entry 17A, and land regulation falls within the State List. Accordingly, the State retains both constitutional and statutory competence to: Prevent encroachment upon forest land; Ensure compliance with land-use regulations; Regulate occupation and construction within protected areas; Safeguard ecological balance.

Thus, issuance of notices to suspected encroachers was not an act of territorial assertion but a step toward enforcing conservation laws.

B. Eviction of Encroachments Is a Remedial Measure, Not a Sovereign Reconfiguration

98. Eviction proceedings undertaken by Pragyam were directed against unauthorised occupation of land and forest areas. Such measures do not alter territorial boundaries; rather, they seek to restore lawful possession and regulatory order.

In environmental jurisprudence, this Hon'ble Court has consistently held that encroachments on forest land must be removed to preserve ecological integrity.

99. In **M.C. Mehta v. Kamal Nath**³⁹, the Court applied the Public Trust Doctrine, holding that natural resources are held in trust by the State for the benefit of the public and cannot be permitted to be exploited or encroached upon.

100. If Pragyam had refrained from eviction of unlawful occupants, it would have failed in its trustee obligation over natural resources. The eviction operations therefore preserved rather than disturbed the existing legal order.

C. The Status Quo Understanding Did Not Freeze Pre-Existing Administrative Practice

101. The November 2020 understanding was intended to prevent escalation of inter-State confrontation. It cannot be construed as freezing all pre-existing administrative activity. A "status quo" clause ordinarily preserves: Territorial positions as on the date of understanding; Peace and non-aggression between parties; Avoidance of fresh militarised or coercive expansion. Pragyam's actions did not involve: Establishment of new administrative units; Deployment of armed forces for territorial capture; Creation of new policing stations beyond prior administrative reach; Legislative alteration of jurisdictional maps.

Instead, the measures were confined to enforcement of existing regulatory norms within territory already claimed and administered by Pragyam.

Therefore, there was no qualitative change in the ground situation that would amount to breach of status quo.

102. By acting against encroachments through lawful notice and procedure, Pragyam sought to maintain regulatory continuity and prevent the creation of faits accomplis that could prejudice eventual boundary settlement. Failure to act would have risked: Expansion of illegal settlements; Environmental degradation; Competing enforcement claims; Escalation of

—5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026

³⁹ AIR 1997 SC 388

tensions. Thus, the measures undertaken were stabilising rather than destabilising.

3 The November 2020 Status Quo Understanding Cannot Be Interpreted to Compel Administrative Inaction or Permit Continuing Illegality

103. It is most respectfully submitted that even assuming argument that the November 2020 Status Quo Understanding imposed certain restraints upon the parties, such restraints cannot be interpreted in a manner that compels a State to tolerate illegality, environmental degradation, or statutory violations within its claimed jurisdiction. A “status quo” arrangement preserves peace; it does not sanctify unlawful occupation nor suspend constitutional and statutory duties.

A. A Status Quo Clause Must Be Construed Harmoniously With Constitutional Obligations

104. The Constitution imposes affirmative obligations upon the State to protect natural resources and ensure ecological balance. Article 48A directs the State to protect and improve the environment, and Article 51A(g) casts a corresponding duty upon citizens.

This Hon’ble Court has repeatedly elevated environmental protection to a constitutional imperative.

105. In **M.C. Mehta v. Union of India**⁴⁰, the Court expanded the doctrine of absolute liability and emphasised the responsibility of State authorities to prevent environmental harm.

106. If the November 2020 understanding were interpreted to prevent Pragyam from acting against encroachments in forest areas, it would place the State in direct conflict with its constitutional duties. Such interpretation would be constitutionally impermissible.

The principle of harmonious construction requires that executive understandings be interpreted consistently with constitutional mandates, not in derogation thereof.

B. The State Cannot Be Compelled to Abdicate Statutory Enforcement Responsibilities

Forest and land-use regulation are governed by statutory frameworks that require authorities to prevent unauthorised occupation and misuse.

107. In **State of Uttar Pradesh v. Hari Ram**⁴¹, this Hon’ble Court held that statutory duties relating to land regulation cannot be defeated by executive inaction where the law mandates intervention.

~~5TH VOX ANATOLIS MOOT COURT COMPETITION, 2026~~

⁴⁰ AIR 1987 SC 1086

⁴¹ (2013) 4 SCC 280

Similarly, eviction of encroachments is not a matter of discretion where statutory violation is established; it is a remedial obligation.

108.To hold that Pragyam was barred from issuing notices or undertaking eviction would amount to compelling the State to ignore statutory breaches. Such interpretation would invert the rule of law.The rule of law demands enforcement, not suspension, of legal norms even in disputed territories.

C. Cooperative Federalism Requires Good Faith Enforcement, Not Tolerance of Violations

109.The doctrine of cooperative federalism obliges States to respect each other's constitutional spheres. It does not require them to abdicate lawful authority or permit illegal activity in disputed zones.

110.In, this Hon'ble Court emphasised that constitutional actors must act in a spirit of collaboration while respecting the limits of their assigned powers. Pragyam's actions were consistent with this spirit: They were carried out through formal notices;They were grounded in statutory authority; They targeted unlawful occupation rather than lawful residents; They did not involve militarised assertion of control. Such conduct cannot be equated with breach of inter-State understanding.

111.This Hon'ble Court in **E.P. Royappa v. State of Tamil Nadu**⁴² recognised that arbitrariness and mala fides must be clearly established before executive action may be invalidated.

In the present case, the Respondent has not demonstrated:that Pragyam acted with intent to alter boundaries;That the notices were fabricated or ultra vires;That eviction operations were conducted outside statutory procedure;

That force was deployed in a manner inconsistent with law.Absent such proof, the presumption of constitutionality and good faith must prevail.

PRAYER

Wherefore, in light of the facts stated, issues raised, arguments advanced and authorities cited, the petitioners most humbly pray before the Hon'ble Supreme Court of Indravana to adjudge, declare and hold the following:

1. The present suit is maintainable under Article 131 of the Constitution of India and falls within the exclusive original jurisdiction of this Hon'ble Court;
2. Articles 3 and 4 of the Constitution do not bar judicial adjudication of the present inter-State dispute, and that Parliament's inaction does not preclude this Hon'ble Court from determining the constitutional and legal rights of the parties;
3. In the absence of a duly constituted tribunal under the Inter-State River Water Disputes Act, 1956, the unilateral construction of the Thalen Multipurpose Project by the State of Lumira is unconstitutional and contrary to the principles governing inter-State river waters;
4. The Union of India be directed to take appropriate steps, in accordance with law, to ensure time-bound institutional resolution of the inter-State river dispute;
5. The enforcement of the Inner Line Permit regime against officials and residents of the State of Pragyam in the disputed corridor is unconstitutional and violative of Articles 14 and 19 of the Constitution;
6. The actions undertaken by the State of Pragyam in issuing forest and land-use notices and conducting eviction operations were lawful exercises of executive authority and did not violate the November 2020 Status Quo Understanding;

Or pass any other order, direction, or relief that this Hon ble Court may deem fit in the interests of justice, equity and good conscience.

For this Act of kindness, the petitioners as is duty bound shall ever pray.

(Respectfully Submitted)
Counsels on behalf of the Petitioners